

At the time of hearing of this application Learned Joint District Judge upon consideration of the pleadings of both the side framed following points for determination:-

1. Whether there is a prima facie and arguable case in favor of the plaintiff?
2. Whether balance of convenience and inconvenience is in favor of the plaintiff?
3. Whether there is any possibility of irreparable loss if the plaintiff is refused to get the relief as prayed for?

Learned Joint District Judge upon hearing the parties and on considering the materials on record, by his order dated 09.09.2009 allowed the injunction petition against the defendant pre-emptee and restrained him in removing roof, wall, doors, windows, valuable woods of the suit building or to build any structure therein or to disconnect the power, gas, water and sewerage line therefrom or to restrict the plaintiff pre-emptor on living and moving around the house.

Being aggrieved and dissatisfied by the impugned order dated 09.09.2009 passed by the learned Joint District Judge, 1st court, Dhaka, the defendant pre-emptee preferred this First Miscellaneous Appeal.

None appears for both the sides although this matter appeared in the list for hearing on several dates.

Since this Miscellaneous Appeal is an old one of 2009, so we are reluctant to dispose of this appeal on merit.